

1.

CASE #	CASE NAME	HEARING NAME
CVRI2304358	ZIGI USA, LLC vs CAPITAL LOGISTICS & WAREHOUSING WEST, INC	MOTION TO COMPEL

Tentative Ruling:

Plaintiff Zigi USA, LLC is a fashion footwear wholesaler that stored its overstock footwear inventory at a warehouse located at 22000 Opportunity Way, Riverside, California, beginning in mid-2022. The warehouse is owned by defendant/cross-complainant 22000 Opportunity Way, LP, a Delaware limited partnership. Under a February 28, 2019 industrial lease, 22000 Opportunity Way leased the building to defendant Capital Logistics & Warehousing Group, Inc. for warehousing and distribution use, and an entity related to Capital Logistics & Warehousing, defendant Capital Logistics Services West, Inc., operated at the premises.

On September 12, 2022, a five-alarm fire started outside the warehouse. Zigi's inventory inside the building allegedly suffered water-damage when the fire department extinguished the fire. Zigi brought this action against the Capital defendants and 22000 Opportunity Way, alleging causes of action for negligence and premises liability.

22000 Opportunity Way filed a cross-complaint against the Capital entities, alleging various causes of action for breach of contract and indemnity.¹ Capital² noticed the deposition of 22000 Opportunity Way's person most knowledgeable for April 16, 2025. (Stanley declaration, Exhibit "1".) 22000 Opportunity Way failed to appear, and on August 14, 2025 Capital again noticed the deposition of 22000 Opportunity Way, this time for September 12, 2025 (Exhibit "2"), only for 22000 Opportunity Way to again fail to appear. Zigi USA was served with both notices of the deposition. Then on January 13, 2026 Capital again noticed the deposition, this time for January 29, 2026. (Exhibit "3".) Again the deposition did not take place, nor does the record show that 22000 Opportunity Way served any objections or otherwise informed the other parties that they would not be appearing at the depositions.

Zigi then on January 30, 2026 served a notice of the taking of the deposition of the PMK for 22000 Opportunity Way for February 11, 2026. (Exhibit "4".) No witness was produced, but counsel for 22000 Opportunity Way was present. (Exhibit "5".) At the scheduled deposition, counsel for Zigi stated: "Counsel for the witness has informed us that the witness is not available today and that they are working to find a date in the next week deposition go forward." (*Id.*) On March 31, 2026, Zigi served a new notice of

¹ There is no direct contractual relationship between Zigi and 22000 Opportunity Way—Zigi leased to Capital, and then Capital entered into a warehousing agreement to store its stock at the warehouse.

² The parties do not always clearly differentiate between the Capital entities (nor is the distinction relevant to this motion), but the notices of deposition appear to have been served by Capital Logistics Services West, not Capital Logistics & Warehousing Group.

the same deposition,³ with a deposition date of May 8, 2026. (Exhibit “6”.) The day before the deposition the attorneys exchanged emails and agreed to reschedule it. (Exhibit “9”.) Then on May 27 Zigi again noticed the same deposition, this time for June 10. (Exhibit “7”.) On June 8 counsel for 22000 Opportunity Way sent a letter to opposing counsel stating that “[d]ue to unforeseen circumstances that just arose and are beyond our control, we will be unable to produce the intended witness from the Sares Regis Group.” (Exhibit “10”.)⁴ The same attorneys appeared at the June 10 scheduled deposition, again without a witness present. (Exhibit “8”.) On June 17, counsel for Zigi sent an email to 22000 Opportunity Way’s counsel asking for “a firm date within the next two weeks for your client’s PMQ deposition.” (Exhibit “11”.)

Zigi filed this motion to compel the deposition. According to the declaration of its counsel, no dates have been offered in response to the June 17 email. (Stanley declaration, ¶14.) Zigi seeks an order compelling the deposition and sanctions.

22000 Opportunity Way opposes. The opposition is unsupported by any declaration or exhibits. In the opposition 22000 Opportunity Way claims that the motion is somehow moot and claims to have “found a body to produce for the PMK deposition” and that it has “provided multiple alternative dates for this deposition[.]” (Opposition, pp. 2-3.) The opposition then spends some time discussing Capital’s current state of representation, a fact that is obviously irrelevant to 22000 Opportunity Way’s failure to appear at any of the previously noticed depositions. It also opposes the sanctions request. Zigi has filed a reply.

Analysis

In addition to that of an individual person, a party may take the deposition of a public or private corporation, partnership, association, or government agency. (C.C.P. §2025.010.) “If the deponent named is not a natural person, the deposition notice shall describe with reasonable particularity the matters on which examination is requested. In that event, the deponent shall designate and produce at the deposition those of its officers, directors, managing agents, employees, or agents who are most qualified to testify on its behalf as to those matters to the extent of any information known or reasonably available to the deponent.” (C.C.P. §2025.230.) The primary purpose of this procedure is to simplify discovery by eliminating any problems in trying to figure out who in the corporate hierarchy has the information the examiner is seeking... “[i]f the subject matter of the questioning is clearly stated, the burden is on the entity, not the examiner, to produce the right witnesses. And, if the particular officer or employee designated lacks personal knowledge of all the information sought, he or she is supposed to find out from those who do!” (*LAOSD Asbestos Cases* (2023) 87 Cal.App.5th 939, 948–949 [internal quotation marks omitted].)⁵

³ This notice somewhat expanded the categories on which a PMK should be produced from what had been in the prior notice.

⁴ No explanation has been given as to what the Sares Regis Group is.

⁵ The person deposed is referred to as the “person most knowledgeable” (PMK) or “person most qualified” (PMQ). (Weil & Brown, *California Practice Guide: Civil Procedure Before Trial* (The Rutter Group 2026) §8:468.)

While counsel are generally expected to conduct and discovery cooperatively, the service of a deposition notice “is effective to require any deponent who is a party to the action or an officer, director, managing agent, or employee of a party to attend and to testify, as well as to produce any document, electronically stored information, or tangible thing for inspection and copying.” (C.C.P. §2025.280(a).) Failure to appear is grounds for a motion to compel the deposition. (C.C.P. §2025.450.) If the deponent has failed to attend the deposition, a meet and confer declaration is not required; it is sufficient for the moving party to provide “a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.” (C.C.P. §2025.450(b)(2).)

Here 22000 Opportunity Way was properly served with a deposition notice on January 30 and again on May 27 and failed to provide a PMK. No valid objection (C.C.P. §2025.410) was served. The requisite inquiry into the nonappearance was conducted by counsel sending an email “that my office would file a motion to compel 22000’s deposition if a firm date for the deposition was not provided.” (Stanley declaration, ¶14; Exhibit “11”.) Accordingly, Zigi has shown all that is necessary for this motion to be granted.

Sanctions on a motion to compel are appropriate “unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (C.C.P. §2025.450(g)(1).) The opposition fails to show substantial justification. 22000 Opportunity Way first appeared in this action in April of 2024. Trial is currently set for a month from now, August 21. Yet 22000 Opportunity Way’s only explanation for the failure to appear for either of the depositions noticed by Zigi (or for any of the depositions noticed by the Capital entities) appears to be some combination of difficulty in identifying a PMK and some confusion around Capital’s representation. Neither constitutes “substantial justification” in the sense the term is used in section 2025.450 or other discovery statutes. Finding a PMK for a corporate defendant to testify to the basic issues identified in Zigi’s notice (22000 Opportunity Way’s ownership and management of the warehouse, the lease agreement with Capital, communications with Capital regarding the warehouse, knowledge of any lease, code, or regulatory violations by Capital, and the fire) should not take two years and until the eve of trial to locate. Capital has been represented throughout this litigation and does not appear to have sought a delay in the deposition.

Moreover, 22000 Opportunity Way’s conduct during the time that Zigi was attempting to notice and take the PMK’s deposition has been inconsistent with the standards of civility and professionalism required. An attorney should only delay a scheduled deposition when necessary to address scheduling problems and not in bad faith, and should promptly notify all counsel that a previously scheduled deposition will not go forward as scheduled. (Weil & Brown, *California Practice Guide: Civil Procedure Before Trial* (The Rutter Group 2026) §8:496.5 [citing State Bar of California Attorney Guidelines of Civility and Professionalism, §9].) If 22000 Opportunity Way had been having scheduling issues the past six months, its opposition is completely lacking details of the emails, phone calls, and other reasonable attempts to comply with its

discovery obligations that one would expect to see from counsel diligently attempting to informally resolve the matter.

Zigi requests \$8,664.99 in sanctions: \$2,124.99 in costs for court reporters and videographers for the February and June depositions, eight hours of attorney time on the motion, and four hours of attorney time on the reply and attending the hearing, at \$545 an hour. The \$2,124.99 in costs for the court reporters and videographer is substantiated by the invoices, and the hourly rate and expenses is reasonable given the nature of the litigation and prevailing rates in the area. Twelve hours of attorney time is somewhat excessive, however, for a straightforward motion to compel when the deponent twice failed to appear. The court reduces the number of hours on this motion to eight.

Ruling: Grant the motion to compel and order 22000 Opportunity Way to produce a PMK for deposition within 10 days. Award moving party \$6,484.99 in sanctions.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2402278	PINYON CREST COMMUNITY ASSOCIATION vs LGR DEVELOPMENT	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

The request of LGR to continue the motion for post judgment attorney fees and to allow limited discovery is granted. The motion for attorney fees is continued to 10/1/2026 at 8:30 am in Dept. 3. LGR is entitled to discovery regarding the additional attorney fees and costs sought.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2406201	LIN vs YOW	MOTION TO TAX COSTS

Tentative Ruling:

In ruling on a motion to tax costs, the court must first determine “whether the statute expressly allows the particular item, and whether it appears proper on its face. If so, the burden is on the objecting party to show [the cost] to be unnecessary or unreasonable.” (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.) If an item is not expressly allowed under the statute, the burden is on the party seeking the expense to provide evidence that the fees are reasonable or necessary. (*Id.* at 132.)

There is no dispute that Defendant, Yow, were the prevailing parties in this action based on Plaintiff’s voluntary dismissal of the action. A prevailing party is “entitled as a matter of right to recover costs in any action or proceedings.” (CCP § 1032(a)(4).)